



CONFIDENTIAL – LEGAL PRIVILEGE_URGENT: MATERIAL GOVERNANCE FAILURE – DISCRIMINATION, VICTIMISATION & INSTITUTIONAL SILENCE REQUIRING IMMEDIATE BOARD INTERVENTION

4 messages

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Tue, 09 Dec 2025 at 09:23

1. INTRODUCTION:

Dear Chairperson,

I write to you in your capacity as Chair of the Social & Ethics Committee regarding a matter of serious corporate governance failure that requires immediate board-level intervention. As an employee of Medscheme, a subsidiary of AfroCentric Health, I have been subjected to nine months of documented discrimination, victimization, and institutional failure to act.

Despite exhausting internal channels—including formal grievances to HR leading to executive level after 30 days of institutional silence—the misconduct continues unabated. With CCMA litigation now imminent (Case number: WECT23564-25), I bring this to your attention as a final attempt to resolve what represents not only severe personal harm but material legal, reputational, and operational risk to the company.

2. EXECUTIVE SUMMARY OF GOVERNANCE FAILURES

- The core failures involve:
- | Governance Failure | Specific Incident | Date | Evidence |
|-----------------------|---|--------------|----------|
| Discrimination | Public gender identity discrimination (“Wilma” incident) | 23 Sept 2025 | Att. B |
| Retaliation | one of multiple incidents Doubled unpaid leave after discrimination complaint | 25 Sept 2025 | Att. C |
| Procedural failure | senior management whitewashing complaint as “typo” after poor investigation | 1 Oct 2025 | Att. B |
| Institutional Silence | 30+ days no response to second formal grievance from Hr and union | Nov-Dec 2025 | Att. D |
| Unlawful Conduct | >40%salary deduction without consultation | July 2025 | Att. E |
| Duty of Care | one of a few Failure Punitive response to medical emergency | 20 May 2025 | Att. F |

3. KING IV PRINCIPLES VIOLATIONS

This matter engages multiple King IV Principles:

Principle 2 (Exercise ethical leadership):

- Senior management's whitewashing of a serious discrimination complaint
- Hr and union's 30-day silence on a formal grievances

Principle 3 (Responsible corporate citizenship):

- Failure to address discrimination against vulnerable employee
- Breach of Employment Equity Act and Labour Relations Act

Principle 14 (Stakeholder relationships):

- Complete breakdown in employee relations
- Failure to address legitimate stakeholder concerns

Principle 16 (Governance of risk):

- Unaddressed legal, reputational, and operational risks
- Failure of internal controls in grievance procedures

4. MATERIAL RISKS TO THE COMPANY

A. Legal & Regulatory Risks:

- Multiple violations of EEA, LRA, BCEA
- Potential fines up to R1.5 million or 10% of turnover (EEA)
- Personal liability for directors under Section 60 of EEA
- Pending CCMA case with high likelihood of success

B. Reputational Risks:

- Public discrimination finding against JSE-listed company
- Possible media exposure of institution failure to protect vulnerable employee
- Impact on B-BBEE certification (discrimination claims negatively score)
- Investor and client confidence erosion

C. Operational Risks:

- Toxic workplace culture evidenced by similar complaints
- Loss of staff
- Productivity impact from ongoing disputes

D. Financial Risks:

- Potential arbitration award: R3 - R4.5 million
- Legal costs: R500,000+
- Management time diversion: 200+ hours

5. EVIDENCE OF INSTITUTIONAL BAD FAITH

1. Whitewashing of Serious Complaint: Senior management declared a clear act of gender identity discrimination as a “typo” following poor investigation (Attachment B).
2. Retaliation Against Complainant one example: Manager doubled unpaid leave immediately after discrimination complaint (Attachment C).
3. Unlawful Financial Deduction: >40% salary cut without consultation during mental health leave (Attachment E).
4. Complete Institutional Silence: 30+ days no response to formal grievances followed escalation (Attachment D).
5. Procedural Obstruction: Refusal to provide meeting agenda, record meetings, or respond in writing to serious allegations resulting in escalation to ethics board member

6. REQUEST FOR BOARD-LEVEL INTERVENTION

Given the complete failure of management and HR structures, I request:

A. Immediate Actions :

1. Appointment of independent investigator to review entire matter
2. Suspension of involved manager pending investigation
3. Temporary removal of HRBP from any involvement in this matter

B. Board-Mediated Resolution Process:

1. Direct board-level mediation possibly before CCMA proceedings
2. Independent valuation of settlement by external experts
3. Governance review of HR and management practices

C. Governance Remediation:

1. Review of whistleblower and grievance procedures
2. Training on discrimination and ethical leadership
3. Cultural assessment of the division involved

7. PROPOSED RESOLUTION PATHWAY

To avoid protracted litigation and further reputational damage, I propose:

1. Board-Mediated Settlement: Direct involvement of Social & Ethics Committee
2. Independent Investigation: Legal firm to assess liability
3. Fair Settlement: Based on actual damages, statutory entitlements, and aggravated damages for institutional bad faith and financial ruin
4. Governance Reform: Commitment to systemic changes

8. ATTACHED EVIDENCE

Attachment A: Chronology of Key Events (1 page)

Attachment B: Discrimination Evidence – “Wilma” incident & HR whitewash

Attachment C: Retaliation Evidence – Doubled unpaid leave after complaint

Attachment D: Institutional Silence – 30-day grievance black hole

Attachment E: Unlawful Deduction - >40% salary cut without consultation

Attachment F: Medical Evidence – Work-related health impact

Attachment G: CCMA Referral Documents

9. URGENCY AND NEXT STEPS

Awaiting CCMA in-lamine/conciliation date. Without board intervention, this will proceed to public arbitration with guaranteed reputational damage.

I request an urgent meeting with the Social & Ethics Committee or its designated representatives by Friday 12:00 12 December 2025.

All communications should be directed to me via email [wilburmat@gmail.com] I will forward copies to my trusted advisor.

10. CONCLUSION

This is not merely an employment dispute but a significant governance failure involving discrimination, failure to act, systemic procedural abuse, and the devastating financial ruin of a protected employee. The board’s intervention is required to:

1. Uphold the company’s ethical commitments
2. Mitigate material risks
3. Demonstrate responsible leadership
4. Avoid certain reputational and financial damage

I remain available for immediate engagement.

Sincerely,

Wilbur William Matthee

Specialist nurse Health services management.

Medscheme(A division of AfroCentric Health).

wilburmat@gmail.com

38 attachments

-  **unpaid leave approved without com.png**
40 KB
-  **unpaid leave response.png**
71 KB
-  **actual reply on reporting MJ .png**
129 KB
-  **asking for clarity in pilot teams group2.png**
70 KB
-  **asking for clarity in pilot teams group2 (1).png**
70 KB
-  **asking for clarity in pilot teams group (2).png**
85 KB
-  **asking for clarity in pilot teams group3.png**
72 KB
-  **ATTACHMENT C (7)- Fw_ Long Calls and Working Overtime.pdf**
209 KB
-  **ATTACHMENT D_INSTITUTIONAL SILENCE.pdf**
22 KB
-  **ATTACHMENT E (2)percent deduction illegal (1).pdf**
55 KB
-  **ATTACHMENT G (1)- CMS - Case WECT23564-25 has been activated(1).pdf**
91 KB
-  **ATTACHMENT C (4) - Fw_ Request to leave office.pdf**
206 KB
-  **ADDITIONAL ATTACHMENT insubordination claim, intrrgity, values, transparency Wilbur Matthee Vs Mary-Ann Jones information request.pdf**
443 KB
-  **ATTACHMENT B (1)A.pdf**
335 KB
-  **ADDITIONAL ATTACHMENT Formal Grievance - Evidence of Malicious Intent, Constructive Dismissal, and Hostile Work Environment by Mary-Ann Jo.pdf**
205 KB
-  **ATTACHMENT A CHRONOLOGY OF KEY EVENTS.pdf**
28 KB
-  **ATTACHMENT C (3) - Fw_ Follow-Up on Unpaid Half-Day Leave – 25 September 2025.pdf**
399 KB
-  **ATTACHMENT C_RETALIATION EVIDENCE-2.pdf**
21 KB

-  **ATTACHMENT B DISCRIMINATION EVIDENCE (EXCERPTS).pdf**
24 KB
-  **ATTACHMENT C (1)- Fw_ Regarding the Unpaid Leave Policy.pdf**
250 KB
-  **ATTACHMENT C (5)I - Fw_ Request for Time in Lieu for Year-End Functions(1).pdf**
310 KB
-  **ADDITIONAL ATTACHMENT- Fw_ Leaving Work 20 May 2025.pdf**
204 KB
-  **ATTACHMENT C (5)I - Fw_ Request for Time in Lieu for Year-End Functions.pdf**
310 KB
-  **ATTACHMENT E (3)payslip3.pdf**
118 KB
-  **ADDITIONAL ATTACHMENT No True Accommodation post mental helth admission Fw_ Meeting Feedback 16 April 2025.pdf**
173 KB
-  **ATTACHMENT D_INSTITUTIONAL SILENCE(1).pdf**
22 KB
-  **Attachment C (2)- Fw_ Unpaid Leave 25 September 2025.pdf**
158 KB
-  **ATTACHMENT A (1)- Fw_ Chronological Hospital Admission Summary and Winter Work Hours Accommodation Request.pdf**
108 KB
-  **ATTACHMENT C (6)- Fw_ Wilbur not feeling well .pdf**
359 KB
-  **Attachement E (1)- Fw_ July 2025 Salary dispute, No staggering, over 40%.pdf**
437 KB
-  **ATTACHMENT F (1)Wilbur Matthee - letter to employer.pdf**
417 KB
-  **ATTACHMENT F _MEDICAL EVIDENCE.pdf**
23 KB
-  **ATTACHMENT E _ UNLAWFUL DEDUCTION.pdf**
24 KB
-  **ATTACHMENT G (1)- CMS - Case WECT23564-25 has been activated.pdf**
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-  **ADDITIONAL ATTACHMENT Formal Grievance - Evidence of Malicious Intent, Constructive Dismissal, and Hostile Work Environment by Mary-Ann Jo(1).pdf**
205 KB
-  **ATTACHMENT C_RETALIATION EVIDENCE-2(1).pdf**
21 KB
-  **ATTACHMENT B (1)B.pdf**
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Wilbur William Matthee <wilburmat@gmail.com>
To: lebohang.mpumlwana@afrocentrichealth.com

Tue, 09 Dec 2025 at 19:26

Dear Lebohang,

I trust you are well, I am not sure whether you gave received my initial email with all attachment. If not please find them attached below.

With full email body.

Kind regards

Wilbur

[Quoted text hidden]

2 attachments



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